

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
JORDAN FREEMAN,

Plaintiff

- against -

**THE CITY OF NEW YORK,
DETECTIVE THOMAS DONEGAN (SHIELD#6625)**

Defendant.

-----X

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 15, 2018

MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

DETECTIVE THOMAS DONEGAN (SHEILD # 6625)

6th PRECINCT

233 West 10th Street
New York, NY 10014

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****JORDAN FREEMAN****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
DETECTIVE THOMAS DONEGAN (SHIELD#6625)
Defendant.**

Plaintiff JORDAN FREEMAN, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter referred to as "CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (referred to hereinafter as "NYPD") officers mentioned herein, including but not limited to Detective Thomas Donegan (hereinafter referred to as "DONEGAN") were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff JORDAN FREEMAN (hereinafter referred to as "FREEMAN") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 8:15pm ON June 3, 2017, inside of 1770 Bruckner Blvd, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. On June 2, 2017, DONEGAN contacted FREEMAN about a shooting that happened the week prior in the Chelsea area of Manhattan that DONEGAN believed FREEMAN had information on.
10. FREEMAN agreed to meet DONEGAN at a nearby McDonald's and told DONEGAN what he knew about the shooting.
11. DONEGAN asked FREEMAN about the whereabouts of the suspected shooter, however, FREEMAN informed DONEGAN that he was unaware of the suspected shooter's location.
12. DONEGAN informed FREEMAN that he believed FREEMAN was being untruthful, but allowed him to leave.
13. On the evening of June 3, 2017, FREEMAN was at home inside apartment 2G of 1770 Bruckner Blvd in Bronx County.
14. FREEMAN was inside the apartment with three other individuals who were also residents of the location.
15. At approximately 8:15pm that night, DONEGAN along with other members of the NYPD officers knocked on the apartment door.
16. DONEGAN and the other NYPD officers were allowed inside the apartment whereby they informed FREEMAN that they were in possession of a warrant to search the premises.
17. Having nothing to hide, FREEMAN allowed DONEGAN and the other NYPD officers to search his residence.

18. Shortly thereafter, DONEGAN calls FREEMAN into the bedroom that belonged to FREEMAN, showing FREEMAN a package of white powder that DOENGAN alleged he found wedged between the dresser and the wall.
19. FREEMAN was arrested and taken to a local Bronx precinct. However, once FREEMAN arrived at the precinct he was interrogated solely about the shooting that happened the week prior, and not the supposed controlled substance that was allegedly found behind FREEMAN's dresser.
20. Approximately 10 hours later FREEMAN was brought to central booking in Bronx County, and approximately 24 hours after the time he was arrested, FREEMAN was arraigned on A-II felony charges.
21. Despite the felony charges being A-II level, the arraigning judge released FREEMAN on his own recognizance; presumably acknowledging the suspicious nature of the charges.
22. After a little over a year of prosecution, all the while professing his innocence, FREEMAN went back and forth to court until all charges were ultimately dismissed on June 28, 2018.

FIRST CAUSE OF ACTION: FALSE ARREST

23. Paragraphs 8-22 are incorporated by reference as fully set forth herein
24. DONEGAN arrested FREEMAN intentionally, and FREEMAN at all times was aware he was being arrested and did not consent to being arrested.

25. As a result of being arrested by DONEGAN and the NYPD officers, FREEMAN suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. The officers who arrested the Plaintiff, as described in paragraphs 8-22, intended to confine him. FREEMAN was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.

29. In arresting Plaintiff as described in paragraphs 8-22, DONEGAN was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

30. In arresting FREEMAN as described in paragraphs 8-22, DONEGAN sought either a detriment to FREEMAN or a collateral advantage to himself that is outside of the legitimate ends of making an arrest.

31. As a result of DONEGAN's abuse of process, FREEMAN sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.
33. In arresting FREEMAN as described in paragraphs 8-22, DONEGAN acted with malice and without probable cause.
34. As a result of being maliciously prosecuted by DONEGAN and the other arresting NYPD officers, FREEMAN sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.
36. Upon information and belief, the officers who illegally arrested FREEMAN were at all times relevant duly appointed and acting officers of the City of New York Police Department.
37. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
38. FREEMAN is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
39. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

40. On or about June 3, 2017, as described in paragraphs 8-22, armed officers of the NYPD, while effectuating the seizure of the Plaintiff, searched, seized, Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest warrant. The officers seized the person of the Plaintiff during the arrest process in an unlawful manner. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
41. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:
- (a) Freedom from illegal search and seizure,
 - (b) Freedom from false arrest,
 - (c) Freedom from malicious prosecution,
42. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
43. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

SIXTH CAUSE OF ACTION: NEGLIGENCE

44. Paragraphs 1-43 are incorporated by reference as though fully set forth herein.

45. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
46. As a result of the negligence by Defendant CITY, the FREEMAN sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

47. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.
48. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
49. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause.
50. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
 - (b) Force cannot be used against an individual who does not physically resist arrest.

(c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.

51. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

52. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

53. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff JORDAN FREEMAN demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

August 15, 2018

Yours, etc.

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II

Attorneys for Plaintiff

380 Lexington Avenue, 17th Floor

New York, NY 10168

(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

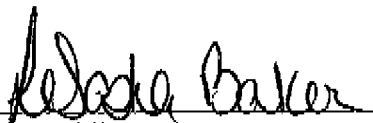
The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
August 16, 2018



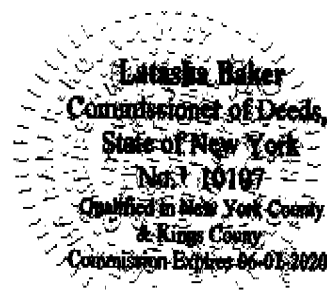
JORDAN FREEMAN

Subscribed and sworn to before me, this ¹⁶th day of August 2018



Notary Public

State of New York
County of New York



**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

JORDAN FREEMAN,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
DETECTIVE THOMAS DONEGAN (SHIELD#6625)**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY. 10168
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

DETECTIVE THOMAS DONEGAN (SHIELD # 6625)
6th PRECINCT
233 West 10th Street
New York, NY 10014